
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER DENYING
DEFENDANT’S MOTION TO
DISQUALIFY UTAH COUNTY
ATTORNEY’S OFFICE**

Case No. 251403576

Hon. Tony F. Graf, Jr.

Before the court is Defendant’s Motion to Disqualify Utah County Attorney’s Office. (Dkts. 236, 250). Defendant argues that a high-level prosecutor assigned to this case has a concurrent conflict of interest and, because no efforts were made to screen him, the entire office should be disqualified. Because Defendant has not established a factual basis for a finding of a conflict of interest or an objective appearance of impropriety rising to a constitutional concern, his motion is respectfully denied.

At Defendant’s request, the court held an evidentiary hearing on January 16, 2026, and February 3, 2026. Each witness was subject to direct and cross-examination, and each witness testified credibly. Although there were slight variances in their testimonies about some facts, those variances are not material to the resolution of this motion. Based on the evidence presented, the court makes the following findings of fact:

Chad Grunander, a prosecutor assigned to this case, is the Chief Deputy at the Utah County Attorney’s Office. He is a veteran prosecutor and has more experience than any other person in the office litigating homicide cases. On September 10, 2025, Mr. Grunander’s daughter (hereinafter “Daughter”) attended a rally at Utah Valley University featuring Charlie Kirk. She sat

in the back of the university courtyard, approximately 85 feet away from where Mr. Kirk was speaking. Shortly after the rally began, she heard a popping noise and heard a man say, “He’s been shot.” She, along with other members of the crowd, ran out of the courtyard into a nearby building. Daughter felt afraid for her life while she was running, but felt better when she reached the building. Daughter texted her father: she told him someone was shot, she heard it was Charlie Kirk, she heard the gunshots, and she was “okay.” Following the incident, Daughter has not experienced any trauma, emotional difficulty, or change to her routine. Daughter was not interviewed by any member of law enforcement or the prosecution team until after the current motion was filed.

When Mr. Grunander received the text messages from Daughter, he was startled and concerned for her welfare, but he felt better when she notified him that she was “okay.” Mr. Grunander shared the text messages with the Utah County Attorney, Jeffrey Gray. Eventually, each prosecutor on the prosecution team and at least some law enforcement personnel became aware that Mr. Grunander’s child had attended the rally. No effort was made by theUCAO to screen Mr. Grunander from the case or from speaking about his child’s experience with other attorneys in the office.

Mr. Gray consulted with his prosecution team, including Mr. Grunander, when determining which charges to file and whether to seek the death penalty, but the ultimate charging decision rested solely with Mr. Gray in his statutory capacity as elected County Attorney. He made the decision to file a notice of intent to seek the death penalty at the inception of the case rather than waiting until after the arraignment, as allowed by statute.¹ His decision to seek death was based upon his assessment that the death penalty is “appropriate” in this case. He chose not to wait to file the notice because he believed it would cause unnecessary speculation on the part of the public

¹ See Utah Code § 76-5-202(3).

and angst on the part of the alleged victim's family. Daughter's presence at the rally did not materially influence Mr. Gray's decision-making, and the court finds that this conclusion is supported by the credible testimony and objective record before it.

Approximately 3,000 people attended the rally at UVU. Throughout the course of the investigation, over forty attendees voluntarily provided witness statements to law enforcement, and several attendees provided video footage of the incident. No evidence was provided by Daughter that was not available from other sources. The State has chosen not to call her as a witness in support of its prosecution of Defendant.

In October 2025, Mr. Grunander sent an email to defense counsel and disclosed that his child had attended the rally at UVU where Charlie Kirk was shot.

DISCUSSION

Defendant moves for disqualification under rule 1.7 of the Utah Rules of Professional Conduct, which provides, in relevant part, that a lawyer has a concurrent conflict of interest if there is a "significant risk that the representation . . . will be materially limited . . . by a personal interest of the lawyer."

In applying this standard, the court is mindful that this is a capital case. The decision whether to seek the death penalty is among the most solemn exercises of prosecutorial discretion, and allegations of bias or personal influence in that context warrant careful and searching judicial review to preserve both due process and public confidence in the integrity of the proceedings.

Defendant argues that Mr. Grunander's relationship with Daughter creates a "significant risk" that his decision-making will be and has been "materially limited" by a personal interest; namely, his loyalty to his daughter. Because no screening was in place to prevent Mr. Grunander's conflict from tainting the entire prosecution team, Defendant argues the UCAO should be disqualified from

prosecuting this case. This is especially so because Mr. Grunander holds a supervisory role in the office and is a key part of the prosecution team.

Defendant has not identified binding authority establishing that a prosecutor has a concurrent conflict solely because the prosecutor has a familial relationship with a potential witness, particularly where that witness has no uniquely relevant information. In the cases Defendant cites, the prosecutors were split between their loyalty to the government and their loyalty to the defendant or a personal interest separate from the case being prosecuted.

In *State v. McClellan*, 2009 UT 50, the prosecutor had previously represented the defendant and had access to confidential, protected information, which could undermine the defendant's right to due process. In *State v. Balfour*, 2008 UT App 410, the prosecutor had past financial, business, and political ties to a defendant, which could conflict with the prosecutor's duty to pursue justice and represent the government. In *Wright v. United States*, 732 F.2d 1048 (2d Cir. 1984), the prosecutor's wife was the defendant's political opponent whom she had accused of sending people to assault her. In *State v. Tate*, 925 S.W.2d 548, 551 (Tenn. Crim. App. 1995), the prosecutor had been a judge on the defendant's case and had been privy to ex parte communications. In *People v. Connors*, 666 P.2d 5, 9 (Cal. 1983), the prosecutor was both a victim and a witness to a separate crime committed by the defendant, which created a personal grudge against the defendant himself. Each of these cases involved a personal interest directly connected to the defendant or some other interest that materially limited the prosecutor's representation of the State.

By contrast, the record here contains no evidence that Mr. Grunander or any member of his family has a personal relationship with, bias toward Defendant. Nor does the record show that Mr. Grunander's professional judgment has been, or is substantially likely to be, materially limited by his loyalty to his daughter. Speculation regarding potential influence is insufficient to establish

a “significant risk” under rule 1.7. The court has independently reviewed the evidentiary record with particular attention to whether any direct or indirect decision-making in this case reflects personal involvement inconsistent with objective prosecutorial judgment. The court finds no such evidence.

Defendant argues that two prosecutorial decisions could have been impacted by Mr. Grunander’s relationship to Daughter, thereby affecting Defendant’s due process rights: the decision not to call Daughter as a witness and the decision to seek the death penalty. The court is persuaded by the evidence presented that Daughter is not being called to testify because she has no uniquely relevant testimony to give and the State has access to much stronger evidence from other witnesses. To the extent Defendant believes his due process rights are violated by the State declining to call Daughter as a witness, Defendant has subpoena powers and a right to call her himself if he believes her testimony is important to his case.

As to the decision to seek death, the court finds that Daughter’s presence at the rally did not factor into the prosecutorial analysis. The evidence supports that Mr. Gray’s decision was grounded in his assessment of the facts and applicable law. Because the circumstances of every case are unique, prosecutorial discretion allows a prosecutor to consider a host of relevant factors when determining whether to seek death, as long as the consideration of those factors is constitutionally sound. *See United States v. Batchelder*, 442 U.S. 114 (1979). Even if Mr. Gray considered the impact on Daughter when deciding to seek death, Defendant has not shown that the impact of a crime on victims, witnesses, or even prosecutors themselves is an unconstitutional consideration when deciding to seek the death penalty.

In sum, the court concludes that there is not a “significant risk” that Mr. Grunander’s

loyalty to Daughter has or will “materially limit” his representation of the State of Utah. Furthermore, Defendant has not shown that there is significant risk that Mr. Grunander’s relationship with Daughter has or will impact Defendant’s due process rights. Based on the record before the court, Defendant has not shown that his prosecution by the Utah County Attorney’s Office is tainted by a concurrent conflict of interest under rule 1.7.

During oral argument, Defendant requested the court also consider whether the UCAO followed the process recommended by Utah Prosecutor’s Best Practices created by the Statewide Association of Prosecutors (“SWAP”) in determining whether to disqualify the UCAO. Defendant argues that best practice demands that a prosecutor avoid the *appearance* of bias based upon public perception. To avoid this appearance, the UCAO should have immediately screened Mr. Grunander from the rest of the office. Because it failed to do so, there is now a “hint” that the decision to seek the death penalty was an emotional response to Mr. Grunander’s concern for his daughter.

The Best Practices document is not controlling on this court. And even if it was, the court is unpersuaded that Mr. Grunander’s relationship with Daughter creates an appearance of bias in this case. Prosecutors need not be immune to the emotional response of others to prosecute a case. Indeed, it is part of a prosecutor’s duty to interview witnesses and victims and evaluate the impact of an alleged crime. “A prosecutor need not be disinterested on the issue whether a prospective defendant has committed the crime with which he is charged. If honestly convinced of the defendant’s guilt, the prosecutor is free, indeed obliged, to be deeply interested in urging that view by any fair means. . . . True disinterest on the issue of such a defendant’s guilt is the domain of the judge and the jury—not the prosecutor.” *Wright*, 732 F.2d at 1056; *see also Marshall v. Jerrico*,

Inc., 446 U.S. 238, 249-50 (1980) (“Prosecutors need not be entirely ‘neutral and detached.’ In an adversary system, they are necessarily permitted to be zealous in their enforcement of the law.”).

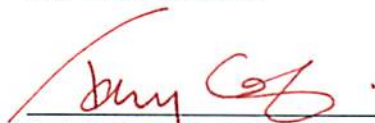
After reviewing the record, the court concludes that the familial relationship at issue, without additional evidence of personal involvement or influence, does not create a reasonable perception that prosecutorial discretion was exercised for improper reasons. Zealous advocacy remains bound by constitutional and ethical constraints, and the court finds those boundaries have not been crossed here.

This ruling is confined to the specific facts established in this record. Different circumstances—such as evidence of direct personal involvement, uniquely material testimony, or demonstrable influence over discretionary decisions—could warrant a different result.

In sum, Defendant has not shown that there is a “significant risk” that Mr. Grunander’s loyalty to Daughter has or will materially limit representation of the State, nor has Defendant demonstrated that his due process rights are compromised by the continued prosecution of this case by the Utah County Attorney’s Office. Applying the governing legal standard to the facts established in the record, Defendant’s motion is respectfully denied.

Dated this 24th day of February, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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02/23/2026

/s/ TREENA HANSEN

Date: _____

Signature